

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

STATE OF MISSISSIPPI

LAFAYETTE COUNTY
FILED

PLAINTIFF

V.

No. LK22-MISC

MATTHEW REARDON

JUL 05 2022
JEFF BUSBY
CIRCUIT CLERK
BY: [Signature] D.C.

DEFENDANT

**MOTION TO DISMISS CRIMINAL AFFIDAVIT AND
RESPONSE TO MOTION TO REVOKE AND DENY BOND
AND HOLD DEFENDANT UNTIL HEARING ON THE SAME**

COMES NOW Matthew Reardon, by and through court-appointed counsel, and responds to the above-referenced motion, as follows:

1. This Court is familiar with Matthew Reardon and knows that in the nearly ten years of dealing with him that he has never engaged in any violent conduct whatsoever. He has never committed an act of violence, never been charged with a violent crime, nor ever been accused of committing an act of violence.

2. The present matter involves Mr. Reardon's arrest for being on the premises of Oxford City Hall. Mr. Reardon is well-known to be a citizen journalist and numerous people, including local law enforcement, follow his citizen journalism on and through social media. "First Amendment Audits" are a growing trend among citizen journalist wherein they exercise their constitutional right to access public spaces and take video recordings in those spaces as allowed by the Constitution. (See Wikipedia on First Amendment Audits attached hereto as Exhibit "A"). Mr. Reardon has previously engaged in several First Amendment Audits and has posted those Audits on social media.

3. Mr. Reardon was conducting a First Amendment Audit of the Oxford City Hall's publicly accessible premises when he is alleged to have been stalking the Oxford Mayor. The

video will show that he was taking no action toward any person. Mr. Reardon did not ask to see any particular person nor did he try to access any private space such as an office. His only physical action was his presence alone, action protected by the Constitution.

4. It took law enforcement over a week to decide if Mr. Reardon should even be charged with a crime. If Mr. Reardon's actions evidenced the sort of imminent, serious danger that disqualifies and arrestee from bond, it would not have taken a week to decide probable cause. Individuals accused of murder, rape, robbery with a deadly weapon and other violent crimes that supported by eyewitness testimony and followed by immediate arrest are routinely offered bond. This case is a far cry from even those bondable offenses, much less the offenses where bond is denied by this Court. Even if Mr. Reardon's presence at City Hall constitutes probable cause for the charge of Aggravated Stalking, there is nothing about this situation that warrants holding him without bond.

5. Counsel for Mr. Reardon is unaware of any other case where denial of bond has been sought by the District Attorney's office in situations where there has been no violence, no threat of violence, no injury, no weapon and where probable cause for felony arrest was so debatable that it took eight days to pull the trigger on arrest.

6. The constitutional presumption of innocence commands the right to bail on the least onerous conditions, and the federal constitutional right to Pre-Trial Release is guaranteed also in every state constitution. Under M.R.C.P. Rule 8.2(a), Mr. Reardon can be denied release only if his "being at large will pose a real and present danger to others or to the public at large." Mr. Reardon has never posed and does not pose a "danger" to anyone. Herein, no threats were made. There was no personal contact. There was no action during the First Amended Audit directed toward the Mayor.

7. Further, M.R.C.P. Rule 8.2(a) requires release even when a “danger” exists. The Court is required to release the defendant and impose “the least onerous conditions contained in Rule 8.4 that will reasonably assure the defendant’s appearance or that will eliminate or minimize the risk of harm to others or the public at large.” If there is any risk of danger, that risk can be eliminated by Rule 8.4 conditions.

8. Holding Mr. Reardon without bond will violate his constitutional rights, including, but not limited to, his liberty rights, presumption of innocence, the prohibition of cruel and unusual punishment, the prohibition of punishment by or with pretrial detention, substantive and procedural due process rights, and other constitutional rights implicated by confining him for conduct that was so benign it took a week for law enforcement and the District Attorney to decide to charge him with a felony offense at all. Where the initial bond was set at \$10,000.00 and no contact, the court is likely just as appalled by the State’s request to deny bond as Mr. Reardon is and should dispose it and the request by denial and dismissal at the felony arrest at Preliminary Hearing.

9. Mr. Reardon respectfully requests that the District Attorney’s Motion be denied and that the arrest be dismissed. In the alternative, he requests that he be released on his own recognizance subject to any conditions or limitations the Court may order to eliminate any concern the Court has about his conduct during release.

WHEREFORE, PREMISES CONSIDERED, Matthew Reardon, by and through court-appointed counsel, requests the relief identified above and for any further relief that the Court deems appropriate.

RESPECTFULLY SUBMITTED, this the 5th day of July, 2022.

MATTHEW REARDON

BY: /s/Mitchell O. Driskell, III
MITCHELL O. DRISKELL, III
Mississippi Bar No.: 100079

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CERTIFICATE OF SERVICE

I, Mitchell O. Driskell, III do hereby certify that I have this day served a true and correct copy of the foregoing Motion by U. S. Mail First Class Postage Prepaid and/or by electronic mail to:

Tiffany Kilpatrick, Esq.
Assistant District Attorney
Third Circuit, State of Mississippi
1301 Monroe Avenue
Oxford, MS 38655

/s/Mitchell O. Driskell, III
MITCHELL O. DRISKELL, III